

Special Provision for Certain Classes

*The special provisions relating to certain classes are contained in part XVI of the constitution from article 330 to 342 A. *Article 330 provides for reservation of seats for SCs and STs in the house of the people. *Under **Article 331**, provision was made for the representation of the Anglo-Indian community in the House of the people. It is noteworthy that the arrangements of nominating representatives of the Anglo-Indian Community in the House of the People have also not been extended beyond the stipulated date (25 January, 2020) by 'the Constitution (One Hundred and Fourth Amendment) Act, 2019. ***Article 332 provides for reservation of seats for SCs and STs** in the legislative assemblies of the states. *Under **Article 333**, provision was made for the representation of the Anglo-Indian Community in the Legislative Assemblies of the States. It is noteworthy that the arrangements of nominating representatives of the Anglo-Indian Community in the Legislative Assemblies of the states have also not been extended beyond the stipulated date (25 January, 2020) by 'the Constitution (One Hundred and Fourth Amendment) Act, 2019. ***Article 338** provides for provisions relating to the **National commission for SCs**. *At present **Kishor Makwana** is the chairman of this commission. ***Article 338A** was added by the **89th Constitutional Amendment Act 2003** which provides for a separate **National Commission for STs**. *The President can appoint a commission to investigate the condition of backward classes (Article 340). *The President can declare any caste of a state/U.T. as a scheduled caste after consulting with the Governor/Lt. Governor of that state/UT (**Article 341(1)**). *The President can declare any caste of a state/UT as a scheduled tribe after consulting with the Governor/Lt. Governor of that state/UT [**Article 342(1)**].

Note : The Constitution (One Hundred and Fourth Amendment) Act, 2019 provides for increasing the reservation of seats for Scheduled Castes and Scheduled Tribes for the next 10 years whereas, the provision for nomination of Anglo-Indian members has not been made beyond the predetermined date (25 January, 2020). So, currently this arrangement has ended.

1. Part XVI (from Art. 330 to 342) of the Indian Constitution deals with –

- (a) Administrative Tribunals
- (b) All India Services
- (c) Finance Commission
- (d) Reservation of seats for SC/ST and representation of Anglo-Indian Community in the House of people.

U.P.P.C.S. (Spl) (Mains) 2004

Ans. (d)

Part XVI of the Constitution containing Articles 330-342A is for the special provisions relating to certain classes. Article 330 provides for the reservation of seats for Scheduled Castes and Scheduled Tribes in the House of People (Lok Sabha), and Article 331 is related to the representation of Anglo-Indian community in the House of People. It is noteworthy that the arrangements of nominating representatives of the Anglo-Indian Community in the House of the People have not been extended beyond the stipulated date (25 January, 2020) by 'the Constitution (One Hundred and Fourth Amendment) Act, 2019. So, currently, this arrangement has ended.

2. Under Indian Constitution, Provision for Scheduled Tribes in Lok Sabha has been made under –

- (a) Article 330
- (b) Article 331
- (c) Article 332
- (d) Article 333

U.P.P.S.C. (GIC) 2010

Ans. (a)

The provisions of reservation for Scheduled Castes and Scheduled Tribes in the Lok Sabha have been made under Article 330 of the Constitution. The same provision of reservation for the said communities in State Legislative Assemblies has been made under Article 332.

3. In which Article of the Indian Constitution is there a provision of reservation of seats for Scheduled Tribes in the State Assembly?

- (a) Article 339
- (b) Article 332
- (c) Article 334
- (d) Article 243 D

M.P.P.C.S. (Pre) 2025

Ans. (b)

Article 332 of the Indian Constitution provides for the reservation of seats for Scheduled Castes (SCs) and Scheduled Tribes (STs) in the Legislative Assemblies of states. The number of reserved seats is determined based on the proportion of the SC or ST population in relation to the state's total population. It ensures that the representation of SCs and STs in the Assembly is roughly proportional to the total number of seats. Additionally, this provision extends to the autonomous districts of Assam's Legislative Assembly.

4. The Authority to specify as to which castes shall be deemed to be Scheduled Castes rests with the–

- (a) Commission of Scheduled Castes and Tribes
- (b) Prime Minister
- (c) Governor of the State
- (d) President

U.P.P.C.S. (Pre) 2016

U.P.P.C.S. (Mains) 2006

Ans. (d)

According to Article 341 of the Constitution, the President may with respect to any State or Union Territory, and where it is a State, after consultation with the Governor thereof, by public notification, specify the castes, races or tribes or parts or groups which shall for the purposes of this Constitution be deemed to be Scheduled Castes to that State or Union Territory, as the case may be.

5. Under which Article of the Indian Constitution does the President issue a public notification for the Scheduled Tribes for a specific state?

- (a) Article 340 (b) Article 349
(c) Article 342 (d) Article 338

M.P.P.C.S. (Pre) 2025

Ans. (c)

Article 342 of the Indian Constitution empowers the President to declare certain tribes or tribal communities as Scheduled Tribes for a state or union territory. This declaration is made through a public notification after consulting the state's Governor. Parliament has the authority to add or remove tribes from the Scheduled Tribes list through legislation. Once the President issues a notification under this provision, it cannot be altered by any subsequent notification.

6. Which statement is not correct?

- (a) The lists of Scheduled Castes and Scheduled Tribes have been made by and order of the President issued in 1950 for each State after consultation with the Governor of that State.
(b) Amendments in these lists can only be made by Parliament by framing an Act.
(c) The lists of Scheduled Castes and Scheduled Tribes are prepared and amended by the concerned State Governments.
(d) A tribe can be declared as a Scheduled Tribe for only a part of a State.

M.P.P.C.S. (Pre) 1994

Ans. (c)

The power to include or exclude any caste, race or, tribe or any group as Scheduled Castes and Scheduled Tribes, in the list specifying these communities, is vested in the Parliament. The Parliament may exercise this power by making a law. Such provision for Scheduled Castes is given in Article 341 and for Scheduled Tribes in Article 342.

7. Consider the following statements :

- 1. It is the Governor of the State who recognizes and declares any community of that State as a Scheduled Tribe.**
- 2. A community declared as a Scheduled Tribe in a State need not be so in another State.**

Which of the statements given above is/are correct?

- (a) 1 only (b) 2 only

(c) Both 1 and 2

(d) Neither 1 nor 2

I.A.S. (Pre) 2024

Ans. (b)

As per Article 342(1) of the Constitution of India, the President may with respect to any State or Union Territory, and where it is a State, after consultation with the Governor thereof, by a public notification, specify the tribes or tribal communities or part of or groups within tribes or tribal communities as Scheduled Tribe in relation to that State or Union Territory as the case may be. Clause (2) of Article 342 empowers the Parliament to pass a law to include in or exclude from the List of Scheduled Tribes, any tribe or tribal community or parts of these. Hence, statement 1 is incorrect. Article 342(1) mandates to specify the tribes or tribal communities or part of or groups within tribes or tribal communities as Scheduled Tribe in relation to that State or Union Territory as the case may be. Thus the list of Scheduled Tribes is State/UT specific and a community declared as a Scheduled Tribe in a State need not be so in another State. Hence, statement 2 is correct.

8. Which community was categorized as Scheduled Caste (SC) by a 2015 Bihar government notification which was quashed in July 2024 by the Supreme Court, ruling that states cannot make changes to the SC list published under Article 341 of the Constitution ?

- (a) Lal Begi (b) Tanti-Tantwa
(c) Pano (d) Dabgar

70th B.P.S.C. Pre-2024

Ans. (b)

In Bihar government's 2015 notification, the 'Tanti-Tantwa' community, previously classified under the Extremely Backward Class, was reclassified under the Scheduled Caste (SC) category, which was annulled by the Supreme Court in July 2024. The Supreme Court, in its decision, stated that states do not have the authority to make changes to the SC list published under Article 341 of the Constitution. Under Article 341 of the Constitution, the list of Scheduled Castes in states is issued through a Presidential Order, and any amendments to it can only be made by Parliament through legislation.

9. Scheduled Tribe status is –

- (a) Restricted to Hindus.
(b) Religiously neutral.
(c) Restricted to Hindus and Christians.
(d) Restricted to Hindus and Muslims.

R.A.S./R.T.S.(Pre) 2010

Ans. (b)

According to the Constitutional (Scheduled Tribes) Order, 1950 the status of Schedule Tribes is religiously neutral. Follower of any religion can be included in Scheduled

Tribe Community, while by para-3 of Constitutional (Scheduled Caste) Order, 1950 only Hindus (which includes Buddhists and Sikhs), can be included in the Scheduled Caste Community. The National Commission for Religious and Linguistic Minorities headed by Rangnath Mishra had recommended repealing this para.

10. The specifications required for a community to be declared as a Scheduled Tribe are :

1. Indications of primitive traits
2. Distinctive culture
3. Shyness of contact with the community at large
4. Backwardness and geographical isolation

Which of the above are correct?

- (a) Only 1 and 2 (b) Only 2, 3 and 4
(c) Only 1, 3 and 4 (d) All of the above

69th B.P.S.C. (Pre) 2023

Ans. (d)

The criterion followed for specification of a community, as scheduled tribes, are indications of primitive traits, distinctive culture, geographical isolation, shyness of contact with the community at large, and backwardness. These criteria is not spelt out in the Constitution but has become well established.

11. After the Amendment in Indian Constitution by the Parliament on 14 August, 2007 the number of castes in the list of Scheduled Caste is –

- (a) 607 (b) 1206
(c) 1410 (d) 1500

48th to 52nd B.P.S.C. (Pre) 2008 (*)

Ans. (b)

After the Amendment made by Parliament in 2007, there were total 1206 Scheduled Castes in India. As per 'The Constitution (Scheduled castes Amendment) Act, 2017' total number of scheduled castes in India is 1261. According to the Census-2011 Scheduled Castes form 16.6 percent to the total population.

12. State having maximum Scheduled Tribes is -

- (a) Bihar (b) Madhya Pradesh
(c) Rajasthan (d) Andhra Pradesh

U.P.P.C.S. (Pre) 1991 (*)

Ans. (b)

The maximum population of Scheduled Tribes is in the State of Madhya Pradesh. The descending order of the States given in the options in terms of their Scheduled Tribes population is- Madhya Pradesh, Rajasthan, Andhra Pradesh and Bihar.

13. In which of following there is no reservation for any caste?

- (a) Rajya Sabha
(b) Legislative Assembly of Jammu and Kashmir

- (c) State Legislative Council
(d) All of above

U.P. Lower Sub. (Pre) 1998

Ans. (a) & (c)

The provision of reservation for Scheduled castes and Scheduled Tribes has been made for Lok Sabha and State Legislative Assemblies under the Constitution. There is no reservation for any caste in the Rajya Sabha and State Legislative Council.

Note - After Jammu and Kashmir Reorganisation Act, 2019, there is no existence of Legislative Council in the Union territory. According to this Act, seats shall be reserved for the Scheduled Castes and the Scheduled Tribes in the Legislative Assembly of the Union Territory of Jammu and Kashmir.

14. The Provision of National Commission for Scheduled Tribes is given in which Article of the Constitution?

- (a) Article 338A (b) Article 341
(c) Article 16 (d) Article 82

U.P.P.C.S.(Pre) 2013

U.P.U.D.A./L.D.A. (Spl) (Mains) 2010

Chhattisgarh P.S.C. (Pre) 2005

Ans. (a)

The provision of the National Commission for Scheduled Tribes has been made by Article 338-A. Originally, there was only Article 338 for the establishment of a commission for Scheduled Castes and Scheduled Tribes (both), but 89th Constitutional Amendment Act, 2003 bifurcated the combined commission into two separate bodies. Article 338A was inserted for a separate commission for Scheduled Tribes. Article 338 now only provides for a commission for Scheduled Castes. The commissions constituted under Article 338 and 338A consist of a Chairperson, Vice-Chairperson, and three other members.

15. Article 338 of the Indian Constitution mandates formation of which of the following Commissions?

- (a) National Commission for Women
(b) National Commission for Minorities
(c) National Human Rights Commission
(d) National Commission for Scheduled Castes

M.P.P.C.S. (Pre) 2025

Ans. (d)

See the explanation of the above question.

16. Article 338 of the Indian Constitution deals with

- (a) National Commission for Scheduled Castes
(b) National Commission for Scheduled Tribes
(c) National Commission for Backward Classes
(d) National Commission for Human Rights

M.P.P.C.S. (Pre), 2021

Ans. (a)

See the explanation of the above question.

17. Under which Article of the Constitution of India, has the National Commission for Scheduled Castes been constituted?

- (a) Article 332 (b) Article 338
(c) Article 342 (d) Article 328

M.P.P.C.S. (Pre.) 2022

Ans. (b)

Article 338 of the Constitution, originally provided for the establishment of a Special Officer for Scheduled Tribes and Scheduled Castes (SCs and STs) to look into any issues pertaining to constitutional safeguards for the SCs and STs and to report to the President on their workings. Later, the 65th Constitutional Amendment Act of 1990, provided for the establishment of a high level multi-member National Commission for SCs and STs in the place of a single Special Officer for SCs and STs. Again, the 89th Constitutional Amendment Act of 2003, bifurcated the combined National Commission for SCs and STs into two separate bodies, namely, the National Commission for Scheduled Castes (under Article 338) and the National Commission for Scheduled Tribes (under Article 338-A).

18. Under which Article of the Constitution the Separate Scheduled Tribe Commission was established?

- (a) 337 (b) 338
(c) 338-A (d) 340

Uttarakhand P.C.S. (Pre) 2016

Ans. (c)

The National Commission for Scheduled Tribes was established by amending Article 338 and inserting a new Article 338A in the Constitution through the constitution (89th Amendment) Act, 2003.

19. The total number of members other than the Chairperson and Vice-Chairperson of the National Commission for Scheduled Tribes is :

- (a) 1 Member (b) 2 Members
(c) 3 Members (d) 4 Members

M.P. P.C.S. (Pre) 2023

Ans. (c)

The NCST comprises a chairperson, a vice-chairperson and three full-time members (including one female member).

20. Which of the following is/are constitutional body/bodies?

- (i) National Human Rights Commission
(ii) National Commission for Scheduled Tribes
(iii) National Investigation Agency
(iv) National Disaster Management Authority
(a) (i), (ii), (iv) (b) (i), (ii), (iii)
(c) Only (ii) (d) Only (iii)

Chhattisgarh P.C.S. (Pre) 2020

Ans. (c)

Formation - of NCST - National Commission for Scheduled Tribes (NCST) was set up on 19th February, 2004 by amending Article 338 and by inserting a new Article 338A through 89th Constitutional Amendment Act, 2003.

Objective - To oversee the implementation of various safeguards provided to STs under the constitution or under any other order to the government and to evaluate the working of such safeguards.

Composition - It comprises a chairperson, a vice-chairperson and three full-time member (including one female member).

21. What is the position of representation of Anglo-Indian Community in Lok Sabha ?

- (a) Nomination of them has been done away with by 104th Constitutional Amendment
(b) Two Anglo-Indians are nominated by the President
(c) They are nominated as per their population
(d) One Anglo-Indian is nominated by the President

70th B.P.S.C. Pre-2024

Ans. (a)

The provision for the representation of the Anglo-Indian community in the Lok Sabha was made under Article 331 of the Constitution. According to this Article, even though provisions were made in Article 81, if the President was of the opinion that the Anglo-Indian community was not adequately represented in the Lok Sabha, he could nominate two members of that community to the Lok Sabha. According to Article 334, this provision was made initially for a period of 10 years in the Constitution. Later, it was extended for periods of 10 years each. Through the 104th Constitutional Amendment Act, 2019, Article 334 was amended to extend the provision of reservation of seats for Scheduled Castes and Scheduled Tribes in the Lok Sabha and State Legislative Assemblies for another 10 years (80 years from the commencement of the Constitution). However, the provision for the representation of Anglo-Indians was not extended further and was terminated.

22. The provision for the representation of Anglo-Indian Community in the Lok Sabha has been made in the Constitution under which Article?

- (a) Art. 121 (b) Art. 139
(c) Art. 221 (d) Art. 331

U.P. P.C.S. (Mains) 2017

Ans. (*)

See the explanation of the above question.

23. Which of the following article is related to the representation of Anglo-Indian community in the legislative assemblies of the states?

- (a) Article - 334 (b) Article - 332

(c) Article – 335

(d) Article – 333

Jharkhand P.C.S. (Pre) 2021

Ans. (d)

Article-333 of the Indian Constitution provides for the representation of the anglo-Indian community in the legislative assemblies of the states. But, 104th Constitutional Amendment Act, 2019 ceased the reservation of the seats for Anglo-Indians in Lok Sabha and State Legislative Assemblies.

24. Which Amendment to the Constitution abolished the two seats that were reserved for the Anglo-Indian community ?

(a) 108th

(b) 100th

(c) 102th

(d) 104th

70th B.P.S.C. Pre-2024

Ans. (d)

In 2020, the Indian Parliament enacted the 104th Constitutional Amendment Act, 2019 which abolished the reservation of seats for the Anglo-Indian community in the Lok Sabha and State Legislative Assemblies. Under the same amendment, the reservation for Scheduled Castes (SC) and Scheduled Tribes (ST) was extended for another 10 years.

25. Match List-I with List-II and select the correct answer using the code given below:

List -I

(Human Rights Documents)

A. The National Commission for Backward Classes Act

B. Child Labour (Prohibition and Regulation) Act

C. Persons with Disabilities (Equal opportunities, Protection of Rights and full Participation) Act

D. The National Commission for Minorities Act

List -II

(Year)

(i) 1990

(ii) 1995

(iii) 1986

(iv) 1993

Code :

- | | A | B | C | D |
|-----|-----|-----|-----|----|
| (a) | ii | i | iii | iv |
| (b) | iv | iii | ii | i |
| (c) | iii | i | ii | iv |
| (d) | iii | i | iv | ii |

R.A.S./R.T.S. (Pre) (Re. Exam) 2013

Ans. (*)

The National Commission for Backward Classes Act came into force in the year 1993, Child Labour (Prohibition and Regulation) Act was passed in the year 1986, while Person with Disabilities (Equal opportunities, Protection of rights and full Participation) Act was implemented in the year 1995. The National Commission for Minorities Act came into force in year 1992. Since the year 1992 is nowhere in the option, thus, no option can be correct. The nearest correct answer is in option (b).

26. Consider the following organizations/ bodies in India:

1. The National Commission for Backward Classes

2. The National Human Rights Commission

2. The National Law Commission

3. The National Consumer Disputes Redressal Commission

How many of the above are constitutional bodies?

(a) Only one

(b) Only two

(c) Only three

(d) All four

I.A.S. (Pre.) 2023

Ans. (a)

The National Commission for Backward Classes is a constitutional body under Article 338B of the Indian Constitution. It was established through a Constitution 102nd Amendment Act, 2018. It has the authority to examine complaints and welfare measures regarding socially and educationally backwards classes. The Commission consists of five members including a Chairperson, Vice-Chairperson and three other Members appointed by the President by warrant under his hand and seal. The National Human Rights Commission is a statutory body established under the Protection of Human Rights Act, 1993. The Law Commission of India is an executive body whose chief function is legal reforms in the country. The National Consumer Disputes Redressal Commission was established in 1988 under the Consumer Protection Act of 1986. It is a quasi-judicial body and statutory in nature.

27. Which of the following Constitutional Amendments is related to the formation of the National Commission for Backward Classes in India?

(a) The 100th Constitutional Amendment

(b) The 101st Constitutional Amendment

(c) The 102nd Constitutional Amendment

(d) None of these

Uttarakhand P.C.S. (Pre) 2021

Ans. (c)

The One Hundred and Second (102nd) Amendment of Constitution granted constitutional status to the National Commission for Backward Classes (NCBC). The amendment has inserted Article 338B, forming a commission for Socially and Educationally Backward classes. Shri Hansraj Gangaram Ahir assumed charge as chairperson for commission on 02-12-2022 till now.

28. Who is the first Chairman of the Backward Classes Commission?

(a) Jagjivan Ram

(b) Kaka Saheb Kalelkar

(c) B. D. Sharma

(d) B. R. Ambedkar

(e) None of the above/More than one of the above

64th B.P.S.C (Pre) 2018

Ans. (b)